

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #09	CCRB Case #: 201705753	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/14/2017 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/14/2019	Precinct: 25		
Date/Time CV Reported Mon, 07/17/2017 10:53 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/17/2017 10:53 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Andrew Mancusi	10763	956059	PSA 5
2. POM Owen Kehoe	26307	945875	PSA 5
3. Officers			
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Robert Reid	3724	928624	PSA 5

Officer(s)	Allegation	Investigator Recommendation
A . POM Andrew Mancusi	Abuse: Police Officer Andrew Mancusi entered and searched § 87(2)(b)	A . Exonerated
B . Officers	Abuse: Officers entered and searched § 87(2)(b) in Manhattan.	B . Exonerated
C . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	C . Officer(s) Unidentified
D . POM Andrew Mancusi	Abuse: Police Officer Andrew Mancusi refused to show the arrest warrant to § 87(2)(b)	D . Unsubstantiated
E . POM Owen Kehoe	Discourtesy: Police Officer Owen Kehoe spoke discourteously to § 87(2)(b)	E . Unsubstantiated

Case Summary

On July 14, 2017, at approximately 6:00 a.m., § 87(2)(b) was in her and her mother § 87(2)(b)'s apartment, located at § 87(2)(b) in Manhattan. § 87(2)(b) was not present. § 87(2)(b)'s friend § 87(2)(b) and her cousin § 87(2)(b) were also staying in the apartment at the time. PO Andrew Mancusi, Sgt. Robert Reid, and PO Owen Kehoe, all of PSA 5, entered the apartment and searched it (**Allegations A and B**). An officer Allegedly stated, "Where is the shit?" (**Allegation C**). PO Mancusi allegedly refused to show the search warrant to § 87(2)(b) (**Allegation D**), and PO Kehoe allegedly asked him, "Where is the shit?" (**Allegation E**).

§ 87(2)(b) and § 87(2)(b) were charged with § 87(2)(b). § 87(2)(b) was released without being charged. No injuries resulted from this incident.

Video from the front hallway of the building was recovered from NYCHA. It does not show any of the allegations that occurred in the apartment. A clip of this video appears below. The entire video file appears in IA #89



mancusikehoeclip.mp4

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to the allegations of property damage.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- On August 24, 2017, a request for a notice of claim from the New York City Office of the Comptroller was returned with negative results (Board Review 4).

Civilian and Officer CCRB Histories

- This is the first complaint involving § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] (Board Review 2, 3, 5).
- PO Kehoe has been a member of service for 9 years. One prior CCRB complaint with three allegations has been filed against him. None has been substantiated (Board Review 6).
 - § 87(2)(g) [REDACTED]
- PO Mancusi has been a member of service for three years. Two prior complaints, with one allegation apiece have been filed against him. One of these complaints, 201702367, is still under investigation (Board Review 6).

- § 87(2)(g) [REDACTED]
[REDACTED]

Potential Issues

- § 87(2)(b) a temporary resident of the apartment, and a victim in this incident, could not be reached by the investigation.
- Video from NYCHA was obtained, but it did not show anything that occurred in the apartment.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegation A—Abuse of Authority: Police Officer Andrew Mancusi entered and searched

§ 87(2)(b) [REDACTED] in Manhattan

Allegation B –Abuse of Authority: Officers entered and searched § 87(2)(b) [REDACTED] in Manhattan.

It is undisputed that officers entered and searched § 87(2)(b) [REDACTED] in Manhattan. This was confirmed by § 87(2)(b) [REDACTED] PO Mancusi, Sgt. Reid and PO Kehoe (Board Reviews 7, 8, 9, 10, and 11) .

The investigation located a warrant sworn out by PO Mancusi. This warrant was valid at the time of the incident, and was executed within ten days of its being sworn out. This warrant empowered PO Mancusi and the unit to search the entirety of the apartment (Board Review 12).

§ 87(2)(g) [REDACTED]
[REDACTED]—it is recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C-Discourtesy: An officer spoke discourteously to § 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED] alleged that he heard an officer say to § 87(2)(b) [REDACTED] “Where is the shit,” when the officers were in the apartment. He heard this statement coming from the room where § 87(2)(b) [REDACTED] was sleeping. He was not able to identify the officer who made this statement (Board Review 8).

§ 87(2)(b) [REDACTED] denied that any officer used profanity in the apartment, and none of the officers stated that they said or heard this statement being made (Board Review 7, Board Reviews 9, 10, and 11). As noted above, the investigation was unable to obtain a statement from § 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED]
§ 87(2)(g) [REDACTED]
[REDACTED]. It is therefore recommended that **Allegation C** be closed as **officer unidentified**.

Allegation C—Abuse of Authority: Police Officer Mancusi did not show the search warrant to § 87(2)(b).

Allegation D—Discourtesy: Police Officer Owen Kehoe spoke discourteously to § 87(2)(b).

§ 87(2)(g)

§ 87(2)(b) stated that when PO Kehoe came into the apartment, he asked § 87(2)(b) “Where is the shit.” He also stated that he asked PO Mancusi for a search warrant, but was never shown one (Board Review 8). § 87(2)(b) confirmed that § 87(2)(b) requested a search warrant while he was in the apartment, but she denied hearing any profanity while the officers were in the apartment (Board Review 7).

PO Mancusi, PO Kehoe, and Sgt. Reid all denied that any of the inhabitants of the apartment requested to see a search warrant. They also denied that officers refused to show any inhabitant of the apartment a search warrant (Board Reviews 9, 10, and 11). PO Kehoe stated that he showed the search warrant to § 87(2)(b) because she was the only inhabitant of the apartment who was asking why the officers were present (Board Review 11). All of the officers denied that any officer asked any civilian, “Where is the shit?”

§ 87(2)(g), it is recommended that **Allegations D and E** be closed as **unsubstantiated**.

Squad #9

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date